

SECOND AMENDMENT TO COMMERCIAL LEASE AGREEMENT

Store ID: S002

THIS SECOND AMENDMENT TO COMMERCIAL LEASE AGREEMENT (this "Amendment") is made and entered into as of March 10, 2024, by and between **SEAPORT DEVELOPMENT PARTNERS**, a Massachusetts limited partnership ("Landlord"), and **SKYLINE STORES**, a Delaware corporation ("Tenant").

RECITALS

WHEREAS, Landlord and Tenant entered into that certain Commercial Lease Agreement dated August 15, 2022 (the "Original Lease"), as amended by that certain First Amendment dated December 1, 2023 (the "First Amendment"), for approximately 12,000 square feet of retail space located at 400 Seaport Boulevard, Boston, Massachusetts 02210;

WHEREAS, Tenant desires to change the trade name under which it operates the Premises and make certain other modifications to the Lease; and

WHEREAS, Landlord consents to such trade name changes and modifications.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

AMENDMENTS

1. TRADE NAME CHANGES

1.1 Current Operating Name Change

Effective April 1, 2024, Tenant is hereby permitted to operate the Premises under the trade name "**Skyline Express Market**" in addition to or in place of "Skyline Stores."

1.2 Previous Name Change (Ratification)

The parties hereby ratify and confirm that effective January 1, 2024, Tenant was permitted to operate under the trade name "**Skyline Fresh**" which replaced the original "express-format Skyline Store" designation.

1.3 Historical Name Changes

For record-keeping purposes, the parties acknowledge the following trade name history for the Premises:

- August 15, 2022 - December 31, 2023: "Express-format Skyline Store"

- January 1, 2024 - March 31, 2024: "Skyline Fresh"
- April 1, 2024 - Present: "Skyline Express Market"

2. PERMITTED USE MODIFICATION

Section 4.1 of the Original Lease is hereby amended to reflect the expanded permitted use as follows:

*"The Premises shall be used exclusively as a Skyline Express Market focusing on:

- Grocery and fresh foods
- Prepared meals and grab-and-go items
- Pharmacy (if properly licensed)
- General convenience merchandise
- Online order pickup and fulfillment services
- Micro-fulfillment center operations"

3. SIGNAGE UPDATES

3.1 Exterior Signage

Tenant is permitted to install new exterior signage reflecting the "Skyline Express Market" trade name at Tenant's sole cost and expense, subject to Landlord's prior written approval and compliance with applicable sign criteria.

3.2 Signage Installation Timeline

New signage must be installed within sixty (60) days of the effective date of this Amendment.

3.3 Removal of Previous Signage

Tenant shall remove all previous signage references to "Skyline Fresh" within thirty (30) days of installing the new signage.

4. HOURS OF OPERATION EXTENSION

Section 4.2 of the Original Lease is hereby modified to allow extended operating hours as follows:

"Tenant shall operate minimum hours of 6:00 AM to 11:00 PM daily, with 24-hour operations permitted Sunday through Thursday with prior notice to Landlord."

5. ADDITIONAL SERVICES FEE

In consideration of the expanded permitted uses and extended operating hours, Tenant agrees to pay an additional monthly fee of **\$500** beginning April 1, 2024, for enhanced security and building services

during extended hours.

6. DELIVERY AND LOGISTICS

6.1 Expanded Delivery Schedule

Tenant's exclusive use of Loading Bay 2 is hereby extended to 5:00 AM to 11:00 AM daily to accommodate the expanded operations.

6.2 Online Fulfillment Operations

Tenant is permitted to conduct online order fulfillment and micro-distribution services from the Premises, provided such operations do not exceed 30% of the total square footage of the Premises.

GENERAL PROVISIONS

7. MARKETING AND PROMOTIONAL RIGHTS

Landlord consents to Tenant's participation in area-wide marketing and promotional activities under the "Skyline Express Market" brand, including but not limited to digital advertising, promotional events, and community outreach programs.

8. RATIFICATION

Except as specifically modified herein, all terms, covenants, and conditions of the Original Lease and First Amendment remain in full force and effect and are hereby ratified and confirmed.

9. DEFINED TERMS

All capitalized terms used herein and not otherwise defined shall have the meanings ascribed to them in the Original Lease.

10. GOVERNING LAW

This Amendment shall be governed by the laws of the Commonwealth of Massachusetts.

IN WITNESS WHEREOF, the parties have executed this Amendment as of the date first written above.

LANDLORD:

SEAPORT DEVELOPMENT PARTNERS

By: _____

Name: Patricia Chen

Title: Managing Partner

Date: March 10, 2024

TENANT:

SKYLINE STORES

By: _____

Name: Robert Thompson

Title: EVP Real Estate

Date: March 10, 2024

ACKNOWLEDGMENTS

STATE OF MASSACHUSETTS

COUNTY OF SUFFOLK

On this 10th day of March, 2024, before me personally appeared Patricia Chen, who proved to me on the basis of satisfactory evidence to be the person whose name is subscribed to the within instrument and acknowledged to me that she executed the same in her authorized capacity.

Notary Public

STATE OF TEXAS

COUNTY OF DALLAS

On this 10th day of March, 2024, before me personally appeared Robert Thompson, who proved to me on the basis of satisfactory evidence to be the person whose name is subscribed to the within instrument and acknowledged to me that he executed the same in her authorized capacity.

Notary Public